

Puneet Mehta vs State Of Punjab & Others on 5 October, 2010

Author: Ajai Lamba

Bench: Ajai Lamba

IN THE HIGH COURT OF PUNJAB & HARYANA, CHANDIGARH

Date of Decision: October 05, 2010

1. Civil Writ Petition No.15892 of 2010

Puneet Mehta

.....PETITIONER(S)

VERSUS

State of Punjab & others

.....RESPONDENT(S)

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2. Civil Writ Petition No.15920 of 2010

Nidhi Saini

.....PETITIONER(S)

VERSUS

Punjab Public Service Commission & others

.....RESPONDENT(S)

. . .

3. Civil Writ Petition No.15998 of 2010

Charan Singh

.....PETITIONER(S)

VERSUS

Punjab Public Service Commission & another

.....RESPONDENT(S)

CWP No.15892 of 2010

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4.

Civil Writ Petition No.16052 of 2010

Gaurav Mahajan

.....PETITIONER(S)

VERSUS

Punjab Public Service Commission & another

.....RESPONDENT(S)

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5.

Civil Writ Petition No.16424 of 2010

Hanish Kumar Singla

.....PETITIONER(S)

VERSUS

State of Punjab & others

.....RESPONDENT(S)

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6. Civil Writ Petition No.16425 of 2010

Neeraj Kumar Arora

.....PETITIONER(S)

VERSUS

Punjab Public Service Commission & another

.....RESPONDENT(S)

CWP No.15892 of 2010

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7. Civil Writ Petition No.16573 of 2010

Sahil Singla

.....PETITIONER(S)

VERSUS

State of Punjab & others

.....RESPONDENT(S)

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8. Civil Writ Petition No.16699 of 2010

Priyanka Rani Jakhar

.....PETITIONER(S)

VERSUS

Punjab Public Service Commission & another

.....RESPONDENT(S)

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9.

Civil Writ Petition No.17033 of 2010

Navjeet

.....PETITIONER(S)

VERSUS

Punjab Public Service Commission & another

.....RESPONDENT(S)

CWP No.15892 of 2010

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CORAM:

HON'BLE MR. JUSTICE AJAI LAMBA

PRESENT: -

S/shri Satya Pal Jain, Senior Advocate with
Dheeraj Jain & Mr. Daves Moudgil; S.S.
Godara, Vipul Aggarwal, Sunil K. Sharma, Aman
Bahri, Vipin Mahajan, Aman Bansal, P.S. Grewal
and Ms. Sonal Datta, Advocates.

Mr. A.P.S. Mann, Additional Advocate General,
Punjab.

Mr. R.N. Raina, Advocate, for Punjab & Haryana
High Court.

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AJAI LAMBA, J (Oral)

1. This shall dispose of a bunch of petitions viz. Civil Writ Petition Nos.15892, 15920, 15998, 16052, 16424, 16425, 16573, 16699 and 17033 of 2010 as common questions of law and facts in the context of same selection are involved.
2. For reference to record, CWP No.15892 of 2010, titled 'Puneet Mehta Vs. State of Punjab & others' is being taken up.
3. This writ petition has been filed under Article 226/227 of the Constitution of India praying for issuance of a writ in the nature of certiorari, quashing action of respondent Nos.2 and 3 namely, Punjab and Haryana High Court, Chandigarh through its Registrar; and Punjab Public Service Commission through its Secretary, in declaring the petitioner unqualified in the preliminary examination taken for Punjab Civil Services (Judicial Branch) 2010, held on 8.8.2010.
4. Prayer further is for issuance of a writ in the nature of mandamus directing the respondents to revise the result of the petitioners after making amendments/ corrections in the Answer Key provided for the question paper.
5. When the matter was taken up for hearing on 29.9.2010, the following order was passed:-

"This bunch of petitions has been filed claiming that the Answer Key provided for the questions is incorrect and, therefore, merit of the petitioners who took preliminary examination for Punjab Civil Services (Judicial Branch) examination, 2010 has been materially affected.

In various petitions, various questions and their answers given in the Answer Key have been brought out to say that the Answer Key provides wrong answers.

Learned counsel for the petitioners have cited 2005 (13) Supreme Court Cases 749, Guru Nanak Dev University Vs. Saumil Garg and others, para no. 6 to contend that the questions must have only one correct answer within given 4 options. In the case in hand, either the questions have been wrongly formulated that allow more than one answer to be correct or the answer provided in the Key is wrong. In such circumstances, either the question must be disregarded and answer sheet be marked accordingly or benefit be given for two or more options given in the question paper.

Para no. 6 of the judgment cited above reads as under:-

"Those who set the papers and those who finalise the key answers have to bear in mind that what is at stake is the career of the young students at the very threshold of their attempt to get entry into professional courses where there is cut-throat competition. The questions posed must have only one correct answer out of the four options given. Likewise, there is responsibility on those who finalise the key an-

swers. If none of the answers is cor-

rect, it becomes their duty to say that none of the answers is correct, so that if any remedial action is to be taken, it should be taken before the answers are valued. It is evi-

dence that on both these aspects, there was serious lapse which resulted in litigation which is otherwise avoidable." (emphasis supplied).

Mr. R.N. Raina, Advocate, appearing for the respondent- High Court contends that out of "Question Booklet Series A", various petitions allege wrong answers given in context of ques- tion nos. 12, 17, 21, 22, 74 and 115. The respondents have considered and concluded that the answer given in the Answer Key to question nos. 12 and 21 indeed are wrong and, therefore, in that context, the question papers need be rechecked/re-evaluated.

Having considered the document filed by learned counsel for the High Court and justification given by him in context of the answers in the Answer Key, learned counsel for the petition- ers concede that answers given in the Answer Key to question nos. 17 and 115 are acceptable as correct and, therefore, the ob- jection in that regard is withdrawn by the petitioners.

Considering the above, the controversy is narrowed down to question no. 22 and 74. The said two questions are reproduced hereunder:-

2 Economic justice as one of the objec- Answer in Key `d' tives of the Indian Constitution has 2 been provided in the : Petitioners are stat-

	(a) Preamble and Fundamental Rights	ing correct answer as `b'
	(b) Preamble and Directive Principles	
	(c) Fundamental Rights and Directive Principles	
	(d) Preamble, Fundamental Rights and Directive Principles	
7	The doctrine of estoppels is a	Answer in Key `c'
4	(a) substantive law	Petitioners are stat-
	(b) rule of equity	ing correct answer as `b'
	(c) rule of evidence	
	(d) law of pleadings	

Learned counsel for the petitioners, in the context of question no. 22 reproduced above, contend that economic justice as one of the objectives of the Indian Constitution has been provided in Preamble and Directive Principles. However, in the context of objective, only Preamble and Directive Principles can be considered. Fundamental rights have been provided to give effect to attaining the objective of economic justice. The language of the question itself is defective and, therefore, the question should be disregarded.

In the context of question no. 74, learned counsel contends that Doctrine of Estoppel is a Rule of Equity; and not of evidence.

Learned counsel for the respondent-High Court, however, contends that Section 115 of the Evidence Act is relevant in the context of the question and, therefore, the Answer Key rightly provides Rule of Evidence as the correct answer.

Learned counsel for the petitioners contend that at best both the answers, Rule of Equity and Rule of Evidence, would be correct and, therefore, either the question be deleted in terms of Supreme Court judgment to which reference has been made hereinabove, or benefit be given to the candidates who have answered either 'b' or 'c'.

Learned counsel for the petitioners have also referred to question no. 65 to say that the Answer Key provides wrong answer.

When the facts and circumstances are collectively considered, it transpires that the controversy is narrowed down to question nos. 22, 74 and 65 of Question Booklet Series 'A'. In regard to question nos. 12 and 21, the respondents concede that the Answer Key needs to be corrected and all the question papers rechecked.

Learned counsel for the respondents pray for time for filing reply, which they undertake to do by 04.10.2010.

Adjourned to 05.10.2010 for arguments.

Copy of the order be given under the signatures of the Court Reader.

Copy of the order be placed on other connected/related files."

6. The stand of the respondent-State is that Selection Committee constituted by the High Court for the States of Punjab and Haryana has set the question paper, and the said respondent would also be evaluating the answer sheets. Under the circumstances, respondent No.2 is the main person who can respond to the contentions made by the petitioners.

7. Question No.65 from Question Booklet Series `A' reads as under:-

"The Hindu Marriage Act, 1955 extends to:-

- (a) The whole of India except the State of Jammu and Kashmir.
- (b) Budhists and Jains.
- (c) Those who are not muslims, Chritmans, Parsis and Jews by religion.
- (d) All."

Answer Key provides the answer as option (d). Learned counsel for the petitioners however have argued that option (a) would constitute correct answer/ option. Learned counsel for the petitioners have made a reference to Section 1 of Hindu Marriage Act, 1955 to say that provision itself shows that "1. Short title and extent.- (1) This Act may be called the Hindu Marriage Act, 1955. (2) It extends to the whole of India except the State of Jammu and Kashmir domiciled in the territories to which this Act extends who are outside the said territories". Learned counsel appearing for the petitioners contend that the respondents possibly, instead of considering the extension of Hindu Marriage Act, are considering the application of the Act. Learned counsel have clarified that since question is very specific as to the extension of the Act, the only possible correct answer is contained in option (a). Option (d) cannot possibly be the correct answer.

8. Learned counsel for the respondent-High Court contends that the respondents would correct the Answer Key for Question at Serial No.65 for Question Booklet Series `A'. The Answer Key would also be corrected in other Series, corresponding to the Question/ Answer No.65 in Question/ Answer Booklet Series `A'. Answer at Option (a) would be reflected as the correct answer in the Answer Key.

9. Learned counsel appearing for respondent No.2 (High Court) contends that the High Court has considered the averments made on behalf of the petitioner(s). In regard to question Nos.12, 21 and 65 of Question Booklet Series `A', the Answer Key needs to be corrected and question papers re-checked. Learned counsel contends that there has been an error in giving the answers in the Answer Key and therefore, the said decision has been taken. The said exercise would be concluded and fresh merit list prepared and published.

10. In view of the stand of respondent No.2, the controversy survives only in regard to question Nos.22 and 74 that have been extracted in Order dated 29.9.2010 reproduced above.

11. Learned counsel appearing for the petitioners in the context of question No.22 from the Question Booklet Series `A', as extracted in Order dated 29.9.2010, contend that the format of the question was required to be considered by the candidates taking the examination. The options/answer is required to be considered in context of "economic justice as one of the Objectives of the Indian Constitution" (emphasis supplied). Learned counsel for the petitioners contend that only Preamble

and Directive Principles contained in the Constitution of India provide 'Objectives'. The said 'Objective' is achieved through Fundamental Rights. In this view of the matter, the only correct answer could be Option (b). The Answer Key however provides Option (d) as correct answer. Learned counsel in this regard have referred to Maharao Saheb Shri Bhim Singhji Anantalakhshmi Pathabi Ramsharma Yeturi & others vs. Union of India & others, AIR 1981 Supreme Court 234 (Para 79).

12. Learned counsel for respondent No.2 - High Court, while referring to Judgments viz. His Holiness Kesavananda Bharati Sripadagalvaru vs. State of Kerala & another (1973) 4 SCC 225; Dalima Cement (Bharat) Ltd. & another vs. Union of India & others (1996) 10 SCC 104; and Ashok Kumar Gupta & another vs. State of U.P. & others (1997) 5 SCC 201, contends that Article 19(1)(g) of the Constitution of India contains underlying principle, objective and provision for economic justice in the Constitutional scheme. Learned counsel has also referred to other provisions from the Constitution of India to justify that Option (d) would constitute the correct answer. Learned counsel contends that the answer reflected in Option (d) would be a more plausible answer than Option (b).

13. In the context of Question No.74 from Question Booklet Series 'A', as extracted in Order dated 29.9.2010 as reproduced above, learned counsel for the petitioners have argued that Doctrine of Estoppel is a 'rule of equity' and therefore, the option given at (b) would constitute a correct answer. The Answer Key however provides Option (c) as the correct option/ answer. Option (c) cannot be a correct answer because it shows 'doctrine of estoppel' as a 'rule of evidence'. Learned counsel for the petitioners, in this regard, have relied on judgments viz. Indira Bai v. Nand Kishore, (1990) 4 SCC 668; CIT v. B.N. Bhattacharjee, (1979) 4 SCC 121; and S. Shanmugam Pillai v. K. Shanmugam Pillai, (1973) 2 SCC 312. Learned counsel for the petitioners have argued that 'Doctrine of Estoppel' was required to be seen and the same cannot be considered strictly in context of provisions of the Evidence Act, 1872.

14. Learned counsel for respondent No.2 - High Court, has referred to a number of judgments viz. Sahu Madho Dass & others vs. Mukand Ram & another AIR 1955 (SC) 481, Supdt. Of Taxes, Dhubri & others vs. M/s. Onkarmal Nathmal Trust (1976) 1 SCC 766, B.L. Sreedhar & others vs. K.M. Munireddy (dead) & others (2003) 2 SCC 355, State of U.P. vs. Nawab Hussain (1977) 2 SCC 806 and Krishna Bahadur vs. Purna Theatre & others (2004) 8 SCC 229 to say that Estoppel is a 'rule of evidence'. Judgments have been cited in regard to its language to say that equity is a broader rule of evidence. Learned counsel further contends that promissory estoppel has been held to be a 'rule of equity' in the following judgments viz. Turner Morrison & Co. Ltd. Vs. Hungerford Investment Trust Ltd. (1972) 1 SCC 857, Commissioner of Income-tax (Central), Calcutta vs. B.N. Bhattacharjee & another AIR 1979 SC 1725, Indira Bai vs. Nand Kishore (1990) 4 SCC 668, Sharma Transport Represented by D.P. Sharma vs. Government of A.P. & others, (2002) 2 SCC 188, Express Newspapers Pvt. Ltd. & others vs. Union of India & others, (1986) 1 SCC 133. It has been argued that 'rule of equity' has many dimensions and cannot be only construed as 'rule of equity'.

15. I have considered the contentions of learned counsel for the parties.

16. The contentions of learned counsel are required to be considered in the context of the law laid down by Hon'ble Supreme Court of India in the case of *Guru Nanak Dev University Vs. Saumil Garg and others* (2005) 13 SCC 749 wherein it has been held that the questions posed must have only one correct answer out of four answers given. Reference can also be made to *Kanpur University & others vs. Samir Gupta & others* (1983) 4 SCC 309 in context of the issue raised in these petitions.

17. Ordinarily, the High Court is not required to examine the question papers or the answers, itself. The purpose of having a selection process is to judge the merit of a candidate in the context of his knowledge. The knowledge of the candidate is to be judged by the respondents by way of posing questions, as per process adopted by the respondents. The answer to a question however is required to be acceptably correct and not suspicious or open to two interpretations or answers when the question paper is objective type. If a wrong answer to a question is provided in the Answer Key, obviously, the knowledge and merit of the candidate cannot be correctly evaluated. If such a condition is allowed to exist, a person who gives wrong answer to the question would get marks for which however he was not entitled, and a person with lesser merit would be selected and the purpose of selection would be defeated. Worthiness of a candidate cannot be judged if the Answer Key provides wrong answer. Ordinarily, the Answer Key should be assumed to be correct, unless contrary is proved. The answers contained in the Answer Key are not to be held wrong by an inferential process of reasoning or by a process of rationalisation.

18. The facts and circumstances of this case are peculiar in so much as the respondents themselves admit that there are errors in the Answer Key. In the context of Question Nos.22 and 74 to which reference has been made above, the contentions of the parties have been noticed hereinabove. I have also considered the judgments to which reference has been made by learned counsel for the parties. The arguments addressed on behalf of the petitioners are not wholly imprudent, without reason or justification. The options do not provide a clear cut single answer. The contention of learned counsel for the respondent(s) that the option given in the Answer Key is more acceptable or plausible, in the context of the law, cannot be accepted. In my considered opinion, substantial justice requires this Court to adopt the option of deleting Question Nos.22 and 74 from Question Booklet Series 'A' and corresponding questions from other Question Booklet Series.

19. In view of the above, the respondents would:

(i) provide correct answers in the Answer Key to Question Nos.12, 21 and 65 of Question Booklet Series 'A'. The respondents are further required to correct the answers in the Answer Key in other Series of Booklets to questions corresponding to Question Nos.12, 21 and 65 from Question Booklet Series 'A';

(ii) The respondents are directed to delete Question Nos.22 and 74 of Booklet Series 'A' and the corresponding questions from other series of Booklets;

And thereafter re-check/ re-evaluate all the papers and prepare and publish the results.

20. While the arguments were being addressed today, in some of the cases, learned counsel for the petitioners contend that some more answers in the Answer Key are wrong. I however find that the contention, at this stage, is belated and therefore cannot be entertained. The main examination has already been scheduled and delay in the process shall not be in public interest.

21. The petitions are allowed in the above limited terms.

October 05, 2010
avin

(AJAI LAMBA)
JUDGE

1. To be referred to the Reporters or not?
2. Whether the judgment should be reported in the Digest?